

STANDING ORDER NO. 225.

Subject :- POLICE-PUBLIC LIAISON: INSTRUCTIONS REGARDING

Accessibility to the general public:

Close co-operation between the Police and the public
is essential to assist the police in prevention and detection of crime

as well as in handling day-to-day law and order problems. For this, it is essential that all the staff from SHOs to DCsP should be easily accessible to the public of their area. The example set by the District DCsP is specially important. They should ensure direct access to themselves unimpeded by the subordinates and must be ready to give a patient hearing to all complaints and grievances. The guidelines have already been issued in this connection vide No. 35711-30/Vig. dated 28.9.1988 that in addition to the existing practice of meeting the public/complainants in the Police Station, steps will be taken by all SHOs and ACsP to keep the visiting complainants informed of the progress in their cases including the action taken by the Police Station. Other steps to be taken in this regard are as under:-

- (a) The Duty Officer shall try to be of help to the complainants/visitors to the best of his ability.
- (b) The SHO shall meet them for half an hour daily. The time of this half an hour period will be displayed prominently (in English & Hindi) in the P.S. both where the Duty Officer sits and in the SHO's room (The exact time of this half an hour will be decided by the SHO for his P.S. keeping in view the characteristics of his P.S.).
- (c) The SHO shall be available to the visiting complainants similarly from 9.00 A.M. to 11.00 A.M. on every Saturday over and above the said half an hour daily.
- (d) The ACP shall be available for one hour twice a week in every P.S. This will also be prominently displayed in the ACsP own office (P.S. wise), and in the P.Ss. concerned, again both in the Duty Officer's and the SHO's rooms.

Visit to areas of jurisdiction :

Besides being available and accessible to the public, the officers should also move around in their areas and visit important mohallas and localities in their jurisdiction with a view to :-

- a) promoting better police public relations which is of incalculable asset in the maintenance of law and order in a democratic set up such as ours.
- b) acquiring first hand knowledge of law and order and traffic problems by developing new sources of information.
- c) listening to public complaints and arranging to redress their grievances on the spot where possible.
- d) having independent knowledge of the working of the police station concerned and recommend suggestions for improvement.

- (23)
- e) acquiring personal knowledge of bullies and rowdies and their activities so as to be able to check unholy alliance between them and some of the black sheep among our force.
 - f) checking investigations made by the I.Os. by occasionally visiting the scenes of important old cases, by interviewing complaints and witnesses and by referring to case diaries.
 - g) enquiring into rumours and general complaints of police malpractices or corruption.
 - h) collecting information where possible about the activities of registered bad characters and examining them in the presence of respectables of the mohalla.

Thana Level Committee :-

One Thana Level Committee should be organised for each police station. The District DCP will be the chairman of the committee and the SDPO of the police station concerned will be its convener. The ACP or Inspector/Traffic of the area will be special invitees. About 25 respectable members of the area will be made members of this committee including the elected representatives of the area as well as the officers bearers or Welfare & Residential Associations in the area. The membership of the committee should be carefully decided by the DCsP in consultation with the SDPOs and SHO of the concerned police station. The term of the committee shall be one calendar year and the members will be eligible for re-nomination. A meeting of the Thana Level Committee will be held at least once a month at the premises of the police station. A copy of the minutes with a report regarding action taken should be sent to the concerned Addl. CP. The Addl.CPs will in turn send a very brief report in the first week of every month to the C.P. or whether these committees are meeting regularly and whether their functioning is satisfactory.

Mohalla Nigrani Committees :-

Mohalla Nigrani Committees have also been organised in all the police stations by the civil Defence and Home Guard Authorities. The SDPOs are the Civil Defence controllers in their areas and are expected to call meetings of the Mohalla Nigrani Committee from the time to time. The role of these committees is as under :-

(i) During War time :

The Committees are utilised to help the Civil Defence Organisation in performing its specified role effectively.

(ii) During Peace time :

- (a) organise watch on any activities by local residents or outsiders which are likely to vitiate communal atmosphere or promote sectarian feelings and inform the local police and the Civil Defence Directorate promptly about such activities besides trying to advise and control the persons indulging therein through local social influence.

- (b) help checking spread of any rumours which might incite communal feelings.
- (c) organise community activities to foster better communal amity.
- (d) organise special patrolling in the locality in case of communal tension or violence as far as possible, in co-ordination with law enforcement agencies.
- (e) protect persons and properties irrespective of community and
- (f) help the Administration in organising relief and rescue operations.

Traffic Wardens :

The Delhi Traffic Police has instituted a Traffic Warden Wing as a part of the citizens voluntary force with the basic idea of ensuring effective report with the police. The members should be respectable citizens with a desire for community service who are willing to give some of their time to assist the traffic staff for improving the traffic conditions in the city. The members should be chosen with a great deal of care. The DCP/Traffic should hold a monthly meeting of his traffic wardens to brief them about their duties and responsibilities as well as to hear their suggestions and problems. Besides this, a meeting with the associations representing HTVs and other transport organisations in Delhi should also be convened on a monthly basis by the DCP/Traffic to seek their co-operation and attend to their grievances.

Special Police Officers:

Each District should also make maximum efforts to enrol as many SPOs from amongst the members of the public as possible. The SPOs should be respectable members of the area and should be capable of working in close liaison with the police. The SPOs' services should be used as an important link with the community in the fields of drug de-addiction, judicial aid, crime against women, etc. They could also be considered for appointment as members of the Thana Level Committee. The District DCaP and DCP/Crime(W) Cell should hold monthly meetings of all the SPOs in the area and the minutes of this meeting should be sent to ADDL. CaP concerned for information. An identity card, as prescribed, may be given to each Special Police Officer. The Special Police Officers may be appointed for 6 months at a time and their appointment may be renewed after every 6 months.

Sd/-
(KANWALJIT DEOL) DCP/HQ(II),
for COMMISSIONER OF POLICE, DELHI.

No. 6893-7100/XXIX/SPL/39/C&T-AC-V, dated the 30/1/1989.

CIRCULAR

Subject:- Police Public Relations

This is in continuation of S.O. No.225 issued vide this Hdqrs. endorsement No. 6893-7100/XXIX/Spl./C&T-AC-V, dated 31.1.89.

(2)

A note based on S.O. No. 1/81 issued by D.G. of Punjab Police on the subject cited above is enclosed. The Commissioner of Police has desired that it should be published in the form of a booklet and copies given to all members of the police. Necessary action regarding its translation in Hindi and printing of booklet is being taken by PHQ separately and booklets will be sent as and when published. Meanwhile the instructions contained therein may please be explained to all ranks particularly trainees (S.I. or Constable). When he joins a copy be given to him and its details explained.

Sd/-
(KANWALJIT DEOL)
DY. COMMISSIONER OF POLICE: HQ (II),
DELHI.

No.21506-806/XXIX/39/C&T-SI-II, dated, Delhi the 31/3/89

NOTE

An average citizen still hesitates to accept a policeman as his "friend" and protector. Request for police help is usually made by a member of the public under stressful circumstances while he is unsure of his reception and treatment. Even under very legitimate circumstances the common man does not want to get entangled with the Police Affairs. In his mind, there is always a lurking possibility of his being harassed rather than being helped. These are symptoms of a general alienation between the Police force and the community.

2. People generally view a Police Officer as a threat. They avoid the Police and therefore Police fails to get their cooperation. The citizens are generally reluctant to contact the Police. Some people regard the Police as their downright enemies.

3. Those Police Officers, who have succeeded in winning public confidence have found a way to present themselves in a non-threatening manner. They develop ways of minimising the threat, which their identity as policemen seems to create. For real success of any police operation, winning of public confidence is a necessity. A really successful officer is one, who has be-friended the public.

4. Needless to say that Indian Police today stands as a much maligned 'tool of repression'. It invokes and suffers popular wrath for the mistakes of others. Policemen are condemned as 'Protectors of elitist status quo' and for want of popular support remain an exploited lot with very little professional fulfilment.

5. The Police suffers from certain limitations. The nature of Police jobs and limitations of Police profession pose special and complicated problems in the area of Police community relations. Some of these special limitations are:-

- (1) Police tasks are generally unpleasant. They tend to curb liberty of certain people.
- (2) Police suffers from a historical hang over of popular perceptual hostility.
- (3) Police does not have patronage or favours to distribute.

- (4) Police is regarded as an agent or defender or status quo.
- (5) Police officials at lower levels are ill equipped for jobs, needing mental faculty.
- (6) Police image is irretrievably lost when violent disorders occur.

6. Notwithstanding these predicaments, the Indian democratic system expects and needs happy and healthy police community relations. Apart from long range social gains the Police organisation also tends to benefit by improvement in Police public relations. With better police community relations Police gains/as follows:-

- (1) Its professional tasks will ensure better popular cooperation and support.
- (2) Its image will improve and so will its capacity to resist interference.
- (3) Its professional prestige will rise in popular esteem and will strengthen its case for better service-conditions.
- (4) Its role as defender of democratic institutions will enhance and it will be in a position to function as 'Limb of Law'.

7. The ways out from the present impasse are:

- (a) A switch over to the philosophy of citizen Police.
- (b) An extension of Police functions in positive sense, and
- (c) A thorough going reform in the recruitment and training systems of the Police organisation.

8. Before we proceed further we have to see what the grievances generally against Police are :-

- (1) Their uncivil behaviour, callousness, rudeness, high handedness, oppressive conduct, vindictive attitudes;
- (2) burking of crime;
- (3) padding of evidence;
- (4) delay in taking up complaints;
- (5) false implication of innocent persons;
- (6) partiality in investigation;
- (7) succumbing to political pressures;
- (8) collusion with anti-social elements; and
- (9) extortion and corruption.

9. It cannot certainly be said that all these faults/defects are to be found in all policemen. But here and there they do exist in a greater or less degree in quite a few of us and to that extent

it may have to be said that the criticism is not unjustified.

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10. Below is a resume of defects as generally met in this regard and what we ought to do to remedy the situation:-

(i) Treatment of Visitors to Police Stations

Quite often, when a person, may be victim of a crime or just a person wanting some assistance, approaches a Police Station Officer, he is not received with that will to help though a 'May I Help You' board might be hanging at the entrance to the Police Station. When a victim comes to the Police Station, he is in an excited state of mind and even before recording what he has to say if the SHO or his representative tries to put him at ease by a few words of assurance and consolation, it is likely to go a long way in creating a good impression about the Police in general. It will be a good gesture if when a victim completely smeared in blood is seen entering a Police Station, the Police Officer there walks up few steps to meet him, uses a few words of consolation and even arranges to give him a cup of tea or coffee. Eventually, it may appear that the offence committed on this victim is only non-cognizable and Police cannot investigate it nor arrest the accused immediately, but the earlier treatment meted out to the person has prevented any misunderstanding about Police intentions.

Annexure 'A' gives details how a complaint/informant will be received in the Police Station.

(ii) Treatment of witnesses

We send for witnesses to come to the Police Station for recording their statements, but we fail to be present at the assigned time and the witness has to wait there without any one explaining as to why the officer is not present and when he is expected to be back there. The witness either lingers on or leaves the place. In the latter case, we get angry with him. Sometimes, even when the officer is present in the Police Station he just does not care to look at the witness or attend to him promptly, but goes on doing various other jobs. This certainly annoys the witness who cannot afford to waste his time at the Police Station.

(iii) Searches

While conducting searches if we have the right approach there is not reason why any criticism be levelled against us as being rude or callous or having offended the religious sentiments of persons. If you find anything incriminating at the end of the search please say: "Excuse me, I certainly do not wish to offend you, but we had some information and we had to check it up".

(iv) Arrests

In the matter of arrest also, we can be decent. Firstly, it is not mandatory that every person to be prosecuted must be arrested. We can make exceptions in deserving cases. When we decide to arrest, however, we can do that also in a good way. But quite a few of us deliberately choose wrong time for arrest, handcuff and rope the accused and parade him through streets when it is not necessary to do so. With the types of offences multiplying fast, persons from various walks of life, who would not otherwise have committed crimes as commonly understood, come to be prosecuted for various violations by them. We certainly can avoid arresting such accused and do just what is needed under law. This will not

give them cause to criticise Police behaviour and action.

In such matters, sometimes we have a different way of dealing with different persons. We give one type of treatment to influential, powerful (physically, financially, politically) persons. We are criticised for being partial. All persons whether rich or poor, powerful or weak, are alike before the law and our dealing with them also should be so.

(v) Burking of crime

Burking of crime or putting up a large number of cases under various preventive sections is generally done for statistical purposes. This attitude develops if supervisory officers go by only figures. The system of assessing performance of subordinates on the basis of statistics demoralises honest and sincere workers and encourages the cheating type. Our aim should certainly be to bring down crime, to improve the percentages of detection and conviction, but this should not be shown or seen through false figures. What should be valued is honest and sincere efforts and efficient investigation. If such efforts are there results are bound to come.

(vi) Attention to Petitions

All Police officers generally receive a large number of petitions by post. Sometimes they are given personally also. Acknowledgements do not go in many cases. Enquiries are not completed for months together and the petitioner just does not know what is happening. After sending a reminder or two, he gives up hope and forms a very bad opinion of the Police. The public, even the educated amongst them do not know various provisions of law even in petty matters. Quite often, these petitions contain matters, which does not come under the strict purview of the Police. Somehow or the other people have a feeling that whatever wrong they see or feel has to be corrected by the Police. These petitions have to be attended to promptly. A prompt reply giving necessary advice on steps to be taken by the petitioner to get his grievances redressed, would create a lot of goodwill for us. Quite a number of petitioners are for seeking protection against harassment by bullies, goondas, and anti-social elements. If we mean to give protection we can do so even in non-cognizable matters. Persons thus benefitted are quite prompt in recognising this and communicating their gratefulness.

(vii) Enforcement of Traffic Laws etc.

Another area of our work where we sometimes earn unpopularity is the enforcement of social legislation and traffic regulations.

With regard to the Traffic Regulations, it always happens that while introducing certain restrictions like one way traffic or closure of some roads to traffic, some persons are bound to be greatly inconvenienced. But with regard to prosecuting violators of such regulations police have discretion. If that discretion is used freely and judiciously, there may not be occasion for public criticism of high-handed and rude behaviour to decent citizens by the Police. In matter of traffic enforcement Police attitude should be to educate and with courtesy and firmness.

(viii) Dealing with crowds, agitators, unrests

This is another matter where Police are exposed to

criticism. Even here while being quite firm in the interest of public peace, we still can minimise occasions for criticism if we do not allow ourselves and our judgement to be influenced by outside pressures. If we know our laws, if we remember our training, if we keep our wits about us, if we keep the poise and balance of our mind in the midst of disturbed situations and act as the occasion demands and as our training dictates us, we are likely to come out unscathed. We have also to be prepared to explain our actions and face consequences, if occasion arises.

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(ix) Public Problems and Inconveniences

There are certain other areas of public sufferings where we can take initiative in redressing them. The major section of the society can be dubbed as silent sufferers'. They murmur amongst themselves but very rarely go up to the authorities with specific complaints about the nuisance they suffer. A policeman who is conscious of his role as a public benefactor should be continuously spotting out such nuisances and even when specific complaints are not received, he should, on his own initiative, take steps to remove the nuisances or at least to reduce it.

The nuisance due to loud speakers is another matter where the police can act on their own initiative and obtain public approval of their action.

Public appearances in uniform of Police officers in shopping and market areas on occasions other than of agitations, disturbances riots, goes a long way in attracting the appreciative and sympathetic eye of the public towards them. During busy hours checking traffic, clearing pavement hawkers or instructing hotel keepers against playing music in violations of the hotel licence conditions, clearing hand carts, hawkers from crowded shopping areas, and sometimes, even standing on traffic points to control and regulate traffic meets public approval widely. The public like this kind of work. They come to know us better and they appreciate such corrective steps when the emphasis is more on improvement than on prosecution of such persons.

(x) Political Pressures

There is often loose talk of political pressures, which interfere in the discharge of policemen's normal functions. There are persons, who want the police to act as they like. They may be politicians. They could be commercial magnates. There are police officers, who allow themselves to be subjected to such pressures to mutual benefit. But an honest, upright, sincere, conscientious and hard-working policeman does not have to succumb to such pressures. If he is courteous and polite while dealing with such influential persons, he can get away from being subjected to any such pressure.

With regard to the transfer of subordinates also sometimes pressures are brought. If the Officer concerned takes on himself the responsibility of enquiring into the grievances of the party, who is seeking such transfers and actually/does so the transfer is not required to be effected if there is no fault on the part of the policemen or officer whose transfer is asked for. Some of us get greatly upset only at receiving such requests and such approaches being made. Then we behave in a curt or rude manner and this actually lands us into trouble.

This kind of dealing with such matters by superior Officers and giving due protection to the subordinates boosts up the morale and confidence of the subordinates, which necessarily leads to better performance by them, which results in improving general police image. It is the responsibility of the superior officers to act as a kind of 'shock absorber' and protect the subordinates from such shocks

(xi) Personal conduct of Policemen

There is a feeling in one section of the public that senior officers have a tendency to protect their corrupt subordinates in order to save the good name of the department. Efforts on the part of senior officers to punish corrupt subordinates and thus try to check corruption in the department are always lauded by the Public. It would be interesting to find out how many of the total number of detected cases of corruption in the Police are the result of steps taken by the departmental superiors and not the result of action taken by the Anti-Corruption or Vigilance Bureau. The integrity, the uprightness, the impartial attitude, honesty and sincerity of a Policeman will always place him quite high in the esteem of the public and will also give him sufficient strength to withstand various types of strains, pressures that he is required to face from time to time in the discharge of his official functions.

When off duty, policemen, irrespective of their rank must act and behave as ordinary citizens. If they expect free cinema, bus travel, goods and services a gratis, encroachment on the rights and privileges of others, they will never enhance the image of police in addition to being guilty of professional misconduct.

(xii) Police Public Relations

Any police Officer, who wants to improve the image of the police in public, has to cultivate three qualities:-

i) Patience;

ii) Psychological insight into the working of mind particularly under stress; and

iii) Sympathetic attitude.

Since we are over worked or we think that we are over worked we seldom are prepared to spare time and energy to listen to the people, who come to us in Police Stations/Police Posts and offices. We do not realise that the people, who come to us after spending lot of money and time expect at least a patient hearing from Police. So we must spare some time and devote some energy to the people, who visit us with their grievances. It does not mean that we should do anything illegal for them or false cases should be registered against anyone. Whenever we are unable to do anything, which the people ask us, we should explain them politely and patiently our legal and statutory limitations. The trouble arises, when police tries to pose that they have all the powers and when they are called upon to help they get themselves entangled in illegal activities.

A Police Officer has to know psychology of people generally and particularly those under stress. We must understand that some people visit us to derive illegal/undue benefit. At the same time we must realise that a very large number of people visit us when they are in a state of distress and they find themselves under strain. Generally an Indian avoids police as a devout person avoids the devil because they consider the Police as wrong people given to oppression and manipulation. However, if we treat the people with courtesy and help them within the law they may come

to realise our difficulties too.

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Policemen have enormous powers under law to help and harass people. Liberty is sacred and honour is still more sacred to people. Yet police has not only legal powers to arrest offenders but also resorts to such misuse of powers that people feel dishonoured. So we must use our powers only when there is complete evidence against the accused person. Normally Police should Protect the Liberty and Honour of the people, particularly of the weaker sections, womenfolk, children, old people and the poor. Under the law police has powers and a powerful person must have sympathetic attitude towards the unfortunately weaker/poorer human beings. Police Must Cultivate Sympathy for the People.

(xiii) Need of Ideals for Police

There is need to motivate all ranks on correct lines, We must set before police high standards of conduct.

Annexure 'B' lays down tasks for police and
Annexure 'C' Principles which should guide police working.

All officers will take vigorous and sustained steps by way of training their subordinates in above ideals and principles.

ANNEXURE 'B'

THE POLICEMAN SHOULD

1. Welcome the people who visit them, respect old people and women folk,
2. Respect the people he serves and not talk down to them,
3. Respect the liberty, rights and dignity of all citizens, as guaranteed by law and the constitution,
4. Be impartial in all cases,
5. Identify criminals, offenders and criminal activity and where appropriate apprehend offenders and assist in subsequent court proceedings,
6. Identify problems that are potentially serious law enforcement problems,
7. Reduce the opportunities for the commission of crimes through preventive patrol and other measures.
8. Create and maintain feeling of security in the community,
9. Resolve local conflicts,
10. Police is an investigating and regulative agency. It is not a punitive agency. It should, therefore, not hand out punishments, nor try to "teach a lesson" to anyone,
11. Aid individuals, who are in danger of physical harm,
12. Facilitate the movement of people and vehicles,
13. Assist those who cannot care for themselves,
14. Provide other services on an emergency basis,
15. Pay for everything you purchase or damage.

6. To use physical force only when the exercise of persuasion, advice, warning is found to be insufficient to obtain public co-operation to an extent necessary to secure observance of law or to restore order; and to use only the minimum degree of force.
7. To maintain at all times a relationship with the public that gives reality to the historic tradition that the police are the public and that the public are the Police; the Police being only members of the public who are paid to give full-time attention to duties which are incumbent on every citizen, in the interests of community welfare & existence.
8. To recognise always the need for strict adherence to police executive function, and to refrain from even seeming to usurp the powers of the judiciary or avenging individuals or the State, and of unauthoritatively judging guilt and punishing the guilty.
9. To recognise always that the test of police efficiency is the absence of crime and disorder, and not the visible evidence of police action in dealing with them.
6. The Police must recognise that they are members of the public with the only difference that in the interest of the community and on its behalf they are employed to give full-time attention to duties which are normally incumbent on every citizen to perform.
7. The Police should realise that the efficient performance of their duties will be dependent of the extent of ready co-operation they receive from the public. This in turn, will depend on their ability to secure public approval of their conduct and actions and then to earn the retain public respect and confidence. The extent to which they succeed, in obtaining public co-operation will diminish proportionately the necessity of the use of physical force or compulsion in the discharge of their duties.
8. The Police should be sympathetic and considerate to all people and should be constantly mindful of their welfare. They should always be ready to offer individual service and friendship and render necessary assistance to all without regard to their wealth or social standing.
9. The Police shall always be courteous and well mannered; they should be dependable and un-attached; they should possess dignity and courage, and should cultivate character and the trust of the people.